

23SMCV00630 23SMCV00630

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-08-06

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

August

6, 2026

CASE NUMBER

23SMCV00630

MOTIONS

Motions

to Compel Responses to (1) Request for Production of Documents, set 1; (2) Request for Production of Documents, set 2; (3) Request for Production of Documents, set 3; (4) Form Interrogatories, set 1; and (5) Special Interrogatories, set 1

MOVING PARTY

Defendant

Steven Lee Rodriguez

OPPOSING PARTY

none

BACKGROUND

This case arises from allegations that Defendant, while in the capacity of Plaintiff's counsel, abandoned Plaintiff in the middle of a trial.

The operative First Amended Complaint ("FAC") brought by Plaintiff Teresija Sigmund ("Plaintiff") against Steven Lee Rodriguez f/k/a Steven Rodriguez, a Professional Corporation ("Defendant") alleging three causes of action for (1) breach of contract; (2) fraud; and (3) general negligence.

Defendant now moves to compel Plaintiff's responses to Requests for Production of Documents ("RPD") sets 1, 2, and 3; Form Interrogatories ("FROG") set 1; and Special Interrogatories ("SROG") set 1. The motions are unopposed.

LEGAL

STANDARDS

1. Interrogatories

Pursuant to Code of Civil Procedure section

2030.290, "[i]f a party to whom interrogatories are directed fails to serve a timely response . . . [t]he party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or the protection for work product under Chapter 4 (commencing with Section 2018.010. . . . [and] The party propounding the interrogatories may move for an order compelling response to the interrogatories." (Code Civ. Proc., § 2030.290, subds. (a)-(b).)

2.

Requests for Production

Pursuant

to Code of Civil Procedure section 2031.300, subdivision (a), "[i]f a party to whom a demand for inspection, copying, testing, or sampling is directed fails

to serve a timely response to it, the following rules shall apply: (a) The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010)." (Code Civ. Proc., § 2031.300, subd. (a).) Where a party fails to respond to demands for production, the propounding party may move for an order compelling response to the demand. (Code Civ. Proc., § 2031.300, subd. (b).) "Within 30 days after service of a demand for inspection, copying, testing, or sampling, the party to whom the demand is directed shall serve the original response to it on the party making the demand" (Code Civ. Proc., § 2031.260, subd. (a).)

ANALYSIS

1.

Discovery Requests

Defendant electronically served the FROG, SROG, and RPD set 1 on Plaintiff on December 3, 2025. Defendant electronically served the RPD set 2 on December 11, 2025, and Defendant electronically served the RPD set 3 on December 29, 2025. (See Fobi Declarations at ¶ 3.)

On June 18, 2026, Defendant requested responses to the outstanding discovery, without objections, by June 19, 2026. (See Fobi Declarations at ¶ 9.) To date, Plaintiff has not responded to any of the above discovery requests. (See Fobi Declarations at ¶ 3.)

Therefore, finding Plaintiff failed to timely object or respond to the requested discovery, the Court grants Defendant's motions to compel responses to the FROG, SROG, and RPD sets 1, 2, and 3.

2.

Monetary Sanctions

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to" interrogatories and document demands, "unless it finds that the one subject to the sanction acted with substantial

justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290 subd. (c); § 2031.300, subd. (c).)

Defendant

seeks monetary sanctions in the following amounts, incurred at a rate of \$550 per hour:

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FROG:

\$1,100

.

SROG:

\$550

.

RPD

set 1: \$550

.

RPD

set 2: \$550

.

PRD

set 3: \$550

(See Fobi Declarations ¶¶ 10,12.)

But here, Plaintiff did not oppose the motion and therefore Plaintiff did not unsuccessfully oppose a motion to compel responses to interrogatories or document demands.

Thus, monetary sanctions are unavailable under Code of Civil Procedure sections 2030.290 and 2031.300.

In the alternative, Defendant requests monetary sanctions jointly and severally against Plaintiff and Plaintiff’s counsel, pursuant to California Rules of Court, rule 3.1348, which provides as follows:

The court

may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion as filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.

(California Rules of Court, rule

3.1348(a).) However, "The failure to

file a written opposition or to appear at a hearing or the voluntary provision of discovery shall not be deemed an admission that the motion was proper or that sanctions should be awarded."

(California Rules of Court, rule 3.1348(b).)

Because Plaintiff

failed to submit or timely object to the discovery requests, without explanation, the Court finds Defendant is entitled to the monetary sanctions, under California Rules of Court, rule 3.1348(a) and the Discovery Act. As such, the Court awards monetary sanctions as requested in connection with the five motions as set forth above in the total amount of \$3,300, representing a total of six (5) hours of attorney time at the rate of \$550 per hour.

CONCLUSION AND ORDER

For the foregoing reasons, the

Court grants Defendant's unopposed motions to compel Plaintiff's responses to the FROG, SROG, and RPD sets 1, 2, and 3.

Plaintiff shall serve verified responses without objections within twenty (20) days' notice of the Court's orders.

Further, the Court awards

Defendant's requested monetary sanctions jointly and severally against Plaintiff and Plaintiff's counsel of record in the requested amount of \$3,300, payable to Defendant, by and through limited scope counsel for Defendant, within twenty (20) days' notice of the Court's orders.

Further, the Court will enter

the proposed Orders lodged on July 15, 2026 in conformity with the ruling.

Defendant

shall provide notice of the Court's orders and file the notice(s) with a proof(s)

of service forthwith.

DATED: August 6, 2026 _____/s/ _____

Michael

E. Whitaker

Judge

of the Superior Court